

valuation roll, exceeded sixty pounds but did not exceed ninety pounds.

(3) Where houses or parts of houses have been taken possession of by a Government Department during the war under the Defence of the Realm Regulations for the purpose of housing workmen, this Act shall apply to such houses or parts as if the workmen were tenants thereof, and notwithstanding that the rent or yearly value thereof did not exceed sixty pounds.

2. This Act shall apply to Scotland only, and may be cited as the Ejection (Suspensory Provisions) (Scotland) Act, 1920.

Short title
and applica-
tion.

CHAPTER 12.

An Act to amend the Enactments relating to Savings Banks; to extend to National Savings Certificates the enactments relating to War Savings Certificates; and to amend the law with respect to the transfer of Government stock by Savings Bank authorities.

[20th May 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

SAVINGS BANKS.

1.—(1) There shall, subject as hereinafter provided, be no limit on the amount which may be received by a savings bank authority from any person by way of deposit or on the amount of Government stock which may be credited by a savings bank authority to the account of any depositor, and all enactments imposing, or relating whether directly or indirectly to, any such limit shall cease to have effect :

Provision as
to limits on
savings banks
deposits and
on investment
in Govern-
ment stock.

Provided that it shall be lawful for the Treasury at any time by order under this section to limit the amount which may be so received from any person whatsoever either in any one year or in the aggregate, or the amount of Government stock which may be so credited to any person whatsoever either in one year or in the aggregate.

(2) An order under this section—

(a) may fix different limits as respects different classes of persons :

- (b) may provide that any limit fixed by the order shall have effect subject to any exceptions or exclusions specified in the order :
- (c) may contain special provisions with respect to depositors whose deposits at the date on which the order takes effect exceed the limit fixed by the order as regards deposits or in whose case the Government stock credited at that date exceeds the limit fixed by the order as regards Government stock :
- (d) may contain such consequential and supplemental provisions as appear to the Treasury to be necessary for giving full effect to the order :
- (e) may be revoked, extended or varied by a subsequent order :
- (f) shall have effect as if enacted in this Act.

(3) Before any order is made under this section, a draft thereof shall be laid before each House of Parliament for a period of not less than twenty-one days during the session of Parliament, and, if either House before the expiration of that period presents an Address to His Majesty against the draft or any part thereof, no further proceedings shall be taken thereon, but without prejudice to the making of any new draft order.

(4) This section shall take effect as from the expiration of a period of six months after the termination of the present war.

Amendment
of s. 5 of the
National
Debt (Sup-
plemental)
Act, 1888.
51 & 52 Vict.
c. 15.

2.—(1) Section five of the National Debt (Supplemental) Act, 1888 (which makes provision as to the rate of interest to be allowed in respect of money paid into the Bank of England or the Bank of Ireland by the trustees of trustee savings banks), shall have effect as though the words “such rate not being less than two pounds fifteen shillings per centum per annum and not exceeding two pounds seventeen shillings and sixpence per centum per annum as the Treasury may by order fix” were therein substituted for the words “the rate of two pounds fifteen shillings per centum per annum.”

(2) Any order made by the Treasury under this section may be varied from time to time as the Treasury think proper, and such rate as may be first fixed under this section shall be deemed to have been in operation as from the twentieth day of November, nineteen hundred and nineteen.

Extension of
power to
make regula-
tions with
respect to
savings banks.

3.—(1) The power of the Postmaster-General, with the consent of the Treasury, to make regulations under the enactments relating to the Post Office savings bank shall include power to make regulations for any of the following purposes :—

- (a) For prescribing the means by which particular facts may be proved and the mode in which evidence thereof may be given, and for authorising the Postmaster-General to treat proof of any particular facts given

in the manner prescribed by the regulations as conclusive evidence of those facts for the purpose of the payment or transfer of any sum :

- (b) For authorising the Postmaster-General for the purpose of the payment or transfer of any sum to treat any person as having been domiciled in the place in which he was resident at the date of his death :
- (c) For directing that except as provided by the regulations no entry with respect to any trust, express, implied or constructive, shall be made in the account of any depositor, and that except as aforesaid no notice of any such trust shall be receivable by the Postmaster-General :
- (d) For determining the date on which a deposit is to be deemed to be withdrawn, and for prescribing the method by which payment of sums withdrawn is to be made.

(2) The Treasury may make regulations applying to trustee savings banks, with or without modifications, the provisions of any regulations made under this section with respect to the Post Office savings bank.

4.—(1) Paragraph (a) of subsection (1) of section three of the Savings Banks Act, 1887, shall have effect as though the words “not exceeding in the aggregate one hundred pounds” were omitted therefrom, and paragraph (b) of the said subsection shall have effect as though for the words “for the revocation of such nomination” there were therein substituted the words “for the manner in which any such nomination may be revoked by the depositor, and for the circumstances in which it is to be treated as having ceased to be operative.”

Amendment
of law as to
deposits of
deceased
depositors.
50 & 51 Vict.
c. 40

(2) Paragraph (c) of subsection (1) of section three of the Savings Banks Act, 1887, shall cease to have effect.

(3) The power to make regulations under section three of the Savings Banks Act, 1887, shall include power to make regulations for any of the following purposes :—

- (a) For directing that any person acting as witness to a nomination shall be disqualified from taking thereunder :
- (b) For authorising the savings bank authority to treat as a depositor in the savings bank any person named as nominee in any nomination who dies after the death of the nominator but before receiving payment of the sum to be paid to him under the nomination :
- (c) For providing that where any person to whom any sum, being the whole or any part of the deposit of a deceased depositor, is payable is unable by reason of any incapacity whatsoever to give a legal discharge therefor the sum may be paid to any person undertaking to maintain the incapacitated person.

Amendment
of s. 3 of
39 & 40 Vict.
c. 52.

5. Section three of the Savings Banks (Barrister) Act, 1876 (which gives power to charge fees on certificates, awards, &c. given or made by the Registrar of Friendly Societies), shall have effect as if the words "not exceeding in any case one pound" were omitted therefrom.

Laying of
draft regula-
tions before
Parliament.

6.—(1) Before any regulations are made either by the Postmaster-General with respect to the Post Office savings bank or by the Treasury with respect to trustee savings banks, a draft thereof shall be laid before each House of Parliament for a period of not less than twenty days during the session of Parliament, and, if either House before the expiration of that period presents an Address to His Majesty against the draft or any part thereof, no further proceedings shall be taken thereon, but without prejudice to the making of any new draft regulations.

(2) All regulations made by the Postmaster-General or by the Treasury as aforesaid shall come into operation on the date specified therein in that behalf, and shall have effect as if enacted in this Act.

24 & 25 Vict.
c. 14.

(3) So much of section eleven of the Post Office Savings Bank Act, 1861, as requires copies of regulations to be laid before both Houses of Parliament shall cease to have effect.

PART II.

NATIONAL SAVINGS CERTIFICATES AND TRANSFER OF GOVERNMENT STOCK.

Statutory pro-
visions relating
to war savings
certificates to
apply to national
savings certifi-
cates.

7. References in any Act to war savings certificates shall include a reference to any national savings certificates issued by the Treasury through the Post Office.

Transfer of
Government
stock by
savings bank
authorities.

8. In the case of the death of any person, being either a depositor in a savings bank to whom Government stock has been credited or a person entitled to Government stock inscribed in the Post Office register, the production of probate or letters of administration granted by any court in the Isle of Man or in any of the Channel Islands having authority to grant the same or of a certified copy of probate or letters of administration so granted shall, subject as hereinafter provided, be sufficient authority to the savings bank authority and (in so far as they are concerned) to the National Debt Commissioners, to transfer the Government stock to the person to whom the probate or letters of administration were granted or as directed by that person, and, where any stock is transferred in pursuance of the provisions of this section, the savings bank authority and the Commissioners shall, notwithstanding the invalidity of or any defect in the probate or letters of administration, be freed, discharged, and indemnified from and against all proceedings of

any kind whatsoever brought against them by any person whatsoever for or in respect of the transfer of the stock :

Provided that a savings bank authority shall not transfer any Government stock in pursuance of the provisions of this section except on production to the authority of a certificate from the Commissioners of Inland Revenue showing either that all death duties payable in the United Kingdom in respect of the stock have been paid or that no duty is payable in the United Kingdom in respect thereof.

PART III.

GENERAL.

9. This Act shall extend to the Channel Islands and the Isle of Man and the Royal Courts of the Channel Islands shall register the same. Extension to Channel Islands and the Isle of Man.

10.—(1) This Act may be cited as the Savings Banks Act, 1920. Short title, interpretation, and repeal.

(2) Part I. of this Act, so far as it relates to the Post Office savings bank, may be cited with and shall be construed as one with the Post Office Savings Bank Acts, 1861 to 1908.

Part I. of this Act, so far as it relates to trustee savings banks, shall be construed as one with the Trustee Savings Banks Acts, 1863 to 1918, and those Acts, section five of the National Debt (Supplemental) Act, 1888, and Part I. of this Act so far as it relates to trustee savings banks may be cited together as the Trustee Savings Banks Acts, 1863 to 1920. 51 & 52 Vict. c. 15.

(3) In this Act the expression "savings bank authority" means, as regards any trustee savings bank, the trustees of the bank, as regards any savings bank for seamen, the Board of Trade, and, as regards the Post Office savings bank and Government stock inscribed in the Post Office register, the Postmaster-General, and references to stock inscribed in the Post Office register shall include references to securities registered in that register.

(4) The enactments mentioned in the schedule to this Act are hereby repealed to the extent specified in the third column of that schedule, in the case of the enactments mentioned in the First Part of that schedule as from the commencement of this Act, and in the case of the enactments mentioned in the Second Part of that schedule as from the expiration of a period of six months after the termination of the present war.

SCHEDULE.

Section 10.

ENACTMENTS REPEALED.

PART I.

Session and Chapter.	Short Title.	Extent of Repeal.
24 & 25 Vict. c. 14.	The Post Office Savings Banks Act, 1861.	Section eleven from "and all regulations" to the end of the section.
39 & 40 Vict. c. 52.	The Savings Banks (Barrister) Act, 1876.	In section three the words "not exceeding in any case one pound."
50 & 51 Vict. c. 40.	The Savings Banks Act, 1887.	Paragraph (c) of subsection (1) of section one; in subsection (1) of section three the words "not exceeding in the aggregate one hundred pounds" and the words from "and (c)" to the end of the subsection; and section four.
57 & 58 Vict. c. 60.	The Merchant Shipping Act, 1894.	Subsection (1) of section one hundred and forty-eight from "so that" to the end of the subsection, and in subsection (3) of that section the words "the amount of deposits."

PART II.

9 Geo. 4. c. 92	The Savings Bank Act, 1828.	Section twenty-seven from "to the amount" to the end of the section, so far as unrepealed.
26 & 27 Vict. c. 87.	The Trustee Savings Banks Act, 1863.	In section thirty-two the words from "with the approval" to "in that respect," the words "without restriction as to amount", and the words from "and also" to the end of the section, and in section thirty-nine the words from "the trustees" to "nor to prevent" and the words from "not exceeding" to the end of the section.
43 & 44 Vict. c. 36.	The Savings Banks Act, 1880.	Subsection (6) of section three.

Session and Chapter.	Short Title.	Extent of Repeal.
45 & 46 Vict. c. 51.	The Government Annuities Act, 1882.	Section seven from "(a) for the purpose" to "paid over to the depositor."
54 & 55 Vict. c. 21.	The Savings Banks Act, 1891.	Section eleven.
56 & 57 Vict. c. 69.	The Savings Bank Act, 1893.	Sections one and two, and section four from "but shall not" to the end of the section.
57 & 58 Vict. c. 47.	The Building Societies Act, 1894.	In section sixteen the words "provided that the whole amount, exclusive of Government stock, credited by the bank to the society does not exceed three hundred pounds at any one time," and the words "provided that the whole amount of Government stock credited by the bank to the society does not exceed five hundred pounds stock at any one time."

CHAPTER 13.

An Act to amend and extend the duration of the Profiteering Acts, 1919. [20th May 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where any persons or associations of persons appearing to the Board of Trade to represent a substantial proportion of the persons engaged in the production or distribution of any article or class of articles to which the Profiteering Act, 1919 (hereinafter referred to as "the principal Act"), is applied, submit to the Board of Trade a scheme limiting the profit to be allowed on the manufacture or distribution of the article or class of articles at all or any stages of manufacture or distribution, the Board of Trade may, if they think it expedient, approve the scheme, and, where any such scheme is so approved, any profit sought or obtained in connexion with the sale of any article to which the scheme relates which does not exceed such profit as is allowed by or under the scheme shall not be deemed unreasonable for the purposes of section one of the principal Act.

(2) If the Board of Trade are satisfied that any scheme so approved secures an adequate supply to the home market of

Schemes for fixing reasonable rates of profit.
9 & 10 Geo. 5.
c. 66.